SENGWA COLLIERY (PRIVATE) LIMITED
versus
THE MINISTER OF MINES AND MINING DEVELOPMENT
and
THE SECRETARY FOR MINES AND MINING DEVELOPMENT
and
THE PROVINCIAL MINING DIRECTOR FOR MIDLANDS
and
MINING AFFAIRS BOARD
and
GEORGE MINING (PRIVATE) LIMITED
and
KABUYUNI MINING SYNDICATE

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 26 March & 8 April 2026

Opposed Application: Ruling on Preliminary Point

G. R. J. Sithole with *R. Rubaya, P. Chivhenge* & *T. Makamure,* for the applicant
T. Mpofu with *H. Nkomo,* for the 5th respondent
No appearance for the 1st, 2nd, 3rd, 4th & 6th respondents

DEMBURE J:

[1] This is an opposed court application for a declaratory order and consequential relief in terms of s 14 of the High Court Act [*Chapter 7:06*]. The applicant seeks the following relief:

> "1. The Application for a Declaratory Order and consequential relief be and is hereby granted.
> 2. It be and is hereby declared that the notice of intention to cancel Special Grant Number 849 (Sengwa Colliery) by the 1st Respondent's letter dated 15th August 2024 is unlawful and is void *ab initio*.
> 3. It be and is hereby declared that the cancellation of Special Grant Number 849 (Sengwa Colliery) by the 2nd Respondent's letter dated 15th August 2025 is unlawful and is void *ab initio*.
> 4. Consequent to paragraphs 1 and 2, it be and is hereby declared that the Applicant, SENGWA COLLIERY (PRIVATE) LIMITED, remains the sole and lawful holder of Special Grant Number 849, with all rights, titles, and interests

pertaining thereto restored and reinstated as if the said cancellation never occurred.

5. It be and is hereby declared that Special Grant Number 10417, issued to the 5th Respondent (GEORGE MINING (PRIVATE) LIMITED) and gazetted on 1seventh October 2025, is null and void *ab initio* and is hereby set aside.
6. The 5th and 6th Respondents, and all those claiming any right, title, or interest through them, are ordered to immediately cease and desist from all mining, exploration, or any other activities on the area encompassed by Special Grant Number 849.
7. The 1st, 2nd, 3rd and 4th Respondents are directed to take all necessary administrative steps to give full effect to paragraphs 4 and 5 of this Order, including but not limited to updating the mining titles register and cancelling any record of Special Grant 10417, within thirty (30) days of this order.
8. The Sheriff for Zimbabwe be and is hereby directed to give effect to clause 6 above, and eject 5th and 6th Respondents and their agents and all those claiming occupation through them from the said mining location.
9. The 5th Respondent shall pay the costs of this application jointly and severally with the 6th Respondent, the one paying the other to be absolved, on a legal practitioner and client scale."

[2] The fifth respondent raised a point *in limine* of non-joinder of the President of the Republic of Zimbabwe. On 26 March 2026, the court, after hearing submissions from the parties' legal practitioners on the preliminary point, reserved judgment *sine die*.

FACTUAL CONSPECTUS

[3] It is common cause that the applicant held Special Grant No. 849 over the coal mining location commonly referred to as the 'Sengwa Colliery' for over four decades. According to the applicant's schedule of operations, it produced 25,000 tonnes of coal annually from 2003 to 2008. It further averred that it resumed operations in 2024 and produces over 24,000 tons with three established mining contractors.

[4] On 15 August 2024, the first respondent issued a notice of intention to cancel the applicant's Special Grant on the basis that there were no mining activities taking place at the Sengwa Colliery and that no reason had been given to the Ministry of Mines and Mining Development as to why no mining activity was taking place. It was further stated that the applicant was being issued with a 12-month notice of intention to cancel the Special Grant No. 849 in terms of s 305(1) of the Mines and Minerals Act [*Chapter 21:05*] (*"the Act"*).

[5] The applicant responded to the Minister's letter on 20 June 2025. In its letter, it made representations against the cancellation of its Special Grant. It attached thereto a document titled Sengwa Status Report detailing its operations over the years, its investments and production cycles, including the plans to establish two thermal power stations. It was further indicated that the company resumed operations in 2024 and that discussions were ongoing with a Chinese investor interested in developing the Sengwa Thermal Power Station and an associated coal mine. The applicant requested that the notice of cancellation be withdrawn and that the Special Grant be retained.

[6] Despite the applicant's plea to retain its Special Grant, the applicant's Special Grant No. 849 was cancelled on 15 August 2025. The notice of cancellation was communicated by the second respondent as the Chairperson of the Mining Affairs Board and the Secretary in the Ministry of Mines and Mining Development.

[7] At one stage, the applicant challenged the cancellation of its Special Grant by filing a review application under Case No. HCH 488/25. The applicant also filed an application for an interlocutory interdict to stop the fifth respondent from conducting mining operations at the Sengwa Colliery until the application for review was determined. The application was filed under Case No. HCH 5952/25. However, both the review and the application for an interdict were later on withdrawn.

[8] Following the cancellation, the fifth respondent was issued a Special Grant No. 10417 over the Sengwa Colliery on 17 October 2025. The applicant filed the present application for a *declaratur* as it treated the decisions and the proceedings related to the cancellation of its Special Grant and the issuance of the Special Grant over the same mining claim to the fifth respondent as nullities. It averred that the power to cancel a Special Grant is exclusively that of the President in terms of s 305 of the Act. It was accordingly argued that the first respondent and the second respondent, acting both as the Secretary in the Ministry and the Chairperson of the fourth respondent, lacked statutory power to cancel a Special Grant issued under Part XX of the Act. It was alleged that there was an illegality as they usurped the powers of the President. The applicant contended that its Special

Grant remained valid and extant and that the fifth respondent's Special Grant could not stand.

[9] The fifth respondent initially raised a preliminary point of *lis alibi pendens*. However, following the withdrawal of the review and interdict applications, the special plea was abandoned. On the merits, the fifth respondent contended that there were no mining activities in the area covered by the applicant's Special Grant, and it applied for a Special Grant for the area. It argued that the cancellation of the applicant's Special Grant complied with s 305 of the Act and the applicant was given sufficient notice of its cancellation. It was also averred that the first respondent obtained the President's approval to cancel the Special Grant. It maintained that it obtained the Special Grant legally after complying with standard procedures. It filed its application for the Special Grant on 1 September 2025. It was further pleaded that the application was duly considered, and its Special Grant was approved by the President upon the recommendations of the Cabinet and gazetted on 17 October 2025. It contended that its Special Grant was valid and extant and that the applicant had no legal rights in respect of the Sengwa mining area in question. It accordingly sought that the application be dismissed with costs on a punitive scale.

[10] When the matter was set down for hearing, the fifth respondent filed a notice of its intention to raise a point of law that there was a non-joinder of the President, which was fatal to the proceedings. It accordingly filed supplementary heads of argument to motivate the point *in limine.* On 26 March 2026, I accepted the supplementary heads of argument with the applicant's consent, and the point *in limine* was accordingly argued.

NON-JOINDER OF THE PRESIDENT OF THE REPUBLIC OF ZIMBABWE

ORAL SUBMISSIONS ON BEHALF OF THE PARTIES

SUBMISSIONS FOR THE FIFTH RESPONDENT

[11] Mr *Mpofu* drew the court's attention first to the nature of the cause of action as well as the relief that is sought against the fifth respondent. He argued that the relief sought, first, is the revival of the applicant's cancelled Special Grant. Secondly, the applicant wants a

vacation of the fifth respondent's Special Grant. The applicant's case, taken on its own papers, shows that there is nothing in this matter that can be related to in the absence of the President of the Republic of Zimbabwe. It is common cause that the President of the Republic of Zimbabwe has not been cited as a party.

[12] Counsel referred me to p 178 of the record, which is a cabinet minute and submitted that its importance was to show that in accordance with the constitutional design, the dispute before the court was related to by both the Cabinet and the President. It is the Cabinet that recommended to the President of the Republic, in terms of s 301 of the Mines and Minerals Act, to authorise the issue of the rights that the fifth respondent holds and the rights that it seeks to defend. The fifth respondent has the right to say that before its rights that were freely and fully granted to it by the President are taken away, the court must hear the President of the Republic of Zimbabwe.

[13] It was further submitted that at p 177 is the Government Gazette of 17 October 2025. In terms of that Gazette, the Minister of Mines says he has acted with the authorisation of the President of the Republic. When it is read together with what is at p 178, what it tells us, rightly or wrongly, is that the Minister was not on a frolic of his own, but there was a discharge of constitutional executive authority. It tells us that the President of the Republic of Zimbabwe is the front and centre of this process. There is no way that this matter can be related to in the absence of the party that has made things happen. This is key in the context of s 110(6) of the Constitution of Zimbabwe, which says that in the exercise of his or her executive functions, the President must act on the advice of the cabinet. What is critical is that the President does not act on his whim but acts on the advice of the Cabinet, and that is a constitutional imperative. That constitutional imperative is demonstrated at p 178, the cabinet minute.

[14] Counsel went on to argue that the decision was made by the President. The importance of the issue of the Special Grant is that it is predicated upon the cancellation of the old. The two cannot be divorced. At p 13 of the record, in particular para(s) 28 and 29, the manner in which the applicant's case is framed is to challenge, as being null and void, this very exercise of executive function by the President, with the recommendation of the Cabinet,

and it is constitutionally mandated. The challenge must not be directed at a mere functionary. It must be directed at the party that has executed the act. In para 29.4, there is a challenge to the President of the Republic of Zimbabwe's action. The applicant wants its title back and that the fifth respondent, who has received the title from the President, be deprived of it. In para 31, it is said that it is also void *ab initio* on the fundamental legal principle that it was founded upon a nullity.

[15] It was further argued that it was the President who had issued the Special Grant. He submitted that in para 34.2 of the founding affidavit, the applicant is very clear about its challenge to a Presidential action. This, he further argued, must be considered with p 198, the relief that is sought. In para(s) 5 to 7, there is a direct challenge to the issue of the Special Grant to the fifth respondent, which is an act of the President of the Republic of Zimbabwe. By law, the President is also involved in the issuance of the Special Grant. There can be no doubt that he is a material and relevant party to this matter. There is also a letter at p 216 directly addressed to the President of the Republic of Zimbabwe. It concerns the same mining location, the RioZim Sengwa Concession. The Minister had written to the President to have him proceed against the concession and procure its cancellation. While the first respondent was not before the court, there are public records, and, on the authority of *Matsika v Chingwena* (the full citation thereof was not given), and indeed in terms of the Civil Evidence Act, the court cannot ignore them. The President then approved that, subject to the applicant's failure, as indicated in the condition. He approved and signed.

[16] It was thus further argued that in this matter, we are not only concerned by the exercise of the President's powers in granting a Special Grant to the fifth respondent, but we are also concerned by the exercise of his power in setting aside or cancelling applicant’s Special Grant. Counsel also submitted that, in his affidavit in the interdict application, the Minister addresses this process. The affidavit shows the President's involvement. By authority in *Mhungu v Mtindi* 1986 (2) ZLR 171 (S), the court can refer to its own records. The President is involved in this matter.

[17] Mr *Mpofu* also submitted that the joinder of the president was not a matter of convenience. He argued that for there to be a cause of action that challenges the exercise of governmental power, the authority that exercises that power must be identified in the case. For that reason, the President's joinder does not become a mere matter of form. It is a matter of legal necessity. We cannot have this case without the President. The court cannot tell the President that he is wrong in proceedings in which he is not invited and has not played a part. This is not a situation contemplated by the rules, in which the court can resolve the rights of the parties before it, because the relief sought must affect what the President did or did not do.

[18] It was also argued that the fifth respondent holds rights that it pursued at a time when the mining location was available for prospecting because there had been a cancellation. The principle of law is that an administrative act, once given, even if wrongly given, is valid and takes effect until and unless set aside by an order of court. Once there was a cancellation, the location was available for prospecting, and the President then gave the rights to the fifth respondent. There is no way that the fifth respondent comes onto the picture without its path being cleared by the President. If its title is to be questioned, the fifth respondent is entitled to say question the President first, ahead of questioning its title. This is a matter where the application is brought against X, and yet relief is sought against Y. See *Hunda* v *Murauro* 1993 (2) ZLR 401 (H) and *Rose* v *Arnold & Ors* 1995 (2) ZLR 17 (H).

[19] Counsel further submitted that upon a finding being made that a necessary party has not been joined, the court can properly dismiss this application for that reason. It was contended that the non-joinder of the President is fatal to this application. Counsel submitted that the point *in limine* may be upheld and the application may be dismissed. He argued that this is so in the context that even when you must cite the President, there are certain procedural requirements set out in the rules that must be met. To the extent that the court is bound by its own rules, there is no attempt to seek condonation at any rate; the court ought to allow a situation in which its rules are fully complied with.

SUBMISSIONS FOR THE APPLICANT

[20] Mr *Sithole*, on the other hand, argued that the fifth respondent had deliberately attempted to argue the merits. He submitted that the point ought not to have detained the court for long. There is nowhere in the applicant's case that it is alleged that the President has acted in such a manner or has failed to act in a certain manner. Regarding the allegations of cancellation, the applicant does not say that the President cancelled its Special Grant; he did not. So his conduct is not being impugned. When one looks again at the awarding of the fifth respondent's Special Grant, the applicant did not allege that the President had issued a Special Grant to the fifth respondent. The applicant did not do so because, from the evidence and record, the President did not act in that manner. Accordingly, whether it is the cancellation of the Special Grant or the awarding of another Special Grant, there is nowhere that the applicant is impugning the conduct of the President.

[21] It was further submitted that the applicant does not impugn any decision of the President, as he has not made any decision contemplated by s 305 of the Mines and Minerals Act or under Part XX of the Act. There is no issue to talk of joinder of necessity or of convenience because nowhere is the President being impugned. At p 220, the reference is being made to the President authorising the Minister of Mines and Minerals Development to issue a Special Grant, and the signature of the issuer is that of the Minister. The certification, which appears at the penultimate paragraph, certifies that the Special Grant has been registered in terms of s 292 of the Mines and Minerals Act. That section empowers the second respondent to act, not the President. When one considers the issuance of the Special Grant in favour of the fifth respondent, those are acts done by the Minister and the Permanent Secretary.

[22] Counsel also submitted that, at p 178, the Cabinet makes a recommendation to the President, but that is not the President who then issues the Special Grant. At p 216 is the letter dated 14 February 2025 addressed to the President. The Minister advises that he intends to cancel two coal concessions. He also argued that at p 217 there is the signature of the Minister and, as well as what he said was allegedly that of the President. Section 110(5) of the Constitution states that a decision by the President must be in writing. At p 217, we do not have that communication from the President in respect of both the

cancellation and the issuance of the Special Grant. There is nothing to impugn about the President, and because the President has not acted either in a cause for cancellation or on a cause for issuance, his joinder is not necessary to the present application.

[23] Mr *Sithole* further argued that the relief being sought is properly being sought. He contended that if it is found that this was done contrary to the law, that is null and void. Everything falls away. In other words, the consequential relief is the setting aside of the Special Grant issued by the Minister and the Permanent Secretary, who are the first and second respondents. It also results in a declaration that the only Special Grant that would be legally valid is the applicant's. There is no joinder of necessity or convenience to talk about in the circumstances.

[24] Counsel maintained that the President did not initiate any process to either give a notice of intention to cancel or to cancel under s 305. The President did nothing in terms of the law. Insofar as cancellation and the awarding of the Special Grants are concerned, he did nothing. What is also critical is that the responsible officials elected not to file anything before the court to resist the allegations against them. It was alleged that they improperly cancelled the Special Grant, but they did not put it into issue. What is not disputed is taken to be admitted. In the face of such an admission by their silence or their non-resistance, the President becomes unnecessary to the resolution of the disputation before the court. It cannot be for the beneficiary of the unlawful conduct to then say someone can come and explain this position. When allegations were made against the individuals, they did not resist them. As a matter of law, all mineral rights, however they are alienated or awarded, are always vested in the President, but it is not in every situation that you then have to cite the President because he is involved in some other aspect or some other respect.

[25] Counsel also submitted that the applicant’s case is simple; it impugns the conduct of the first and second respondents and does not extend to the President. The fifth respondent claims that it is the President who acted, but as stated under s 110(5) of the Constitution, the decision was not communicated by the President. There has been authorisation for the Minister, not the President, to issue the Special Grant under Part XX of the Mines and

Minerals Act. There is no written communication of the President's decision as the source document for the document at p 220.

[26] Mr *Sithole* reiterated that this is a matter in which there can be no talk of joinder of necessity or convenience. But should the court be minded to agree with the fifth respondent, it must turn to rule 32(11). It has always been known that non-joinder would not defeat the cause of the applicant, and, therefore, ought not to result in a dismissal. It could be the removal of the matter from the roll or the striking of the matter off the roll. He also submitted that there was a reference to *Mhungu* v *Mtindi* that the court can relate to its own records, but the interdict application is not before the court; it was withdrawn. Just as the review application was also withdrawn. So those are matters which are not before the courts. The court can take them *pro non scripto*, that is, as if they never happened; they are not there.

REPLYING SUBMISSIONS

[27] In reply, Mr *Mpofu* submitted that if the applicant argues that it does not make a case against the President, then there is no case. That if the applicant's position is that the President did not do what he is alleged to have done, we see his signature and a reference to his name on official documents, including the Government Gazette. If their position is that he did not do any of that, that his signature is forged, and that he's being abused, then that's precisely why they must cite him, so that he can indicate to the court whether he took those steps or did not.

[28] It was further argued that the documents are clear. At p 220 is the Special Grant itself. It says it is the act of the President, and it must be taken on face value until it has been set aside. The fifth respondent need not prove the President's involvement. The official records, being the Special Grant itself, prove the President's involvement. The conditions of the Grant at p. 221 also make it clear that the document was given by the President and that the President can amend it. The President issues instructions even on matters of cancellation and does not have to be the one fronting that particular action. But the action is deemed by law to be his. We cannot run away from his involvement. He is front and centre with respect to this dispute. One does not cite the agent but the principal.

[29] Mr *Mpofu* further contended that the issue is put beyond any doubt by the statute itself. He referred the court to s 301(1) of the Mines and Minerals Act. He submitted that the statute has provided for an elaborate structure that involves the Minister as well as the Board in making recommendations to the President. At p 220 is a Special Grant that says the Minister has been authorised by the President to issue it. At p 221 are the conditions that the President has fixed. In accordance with the design of statutes, the President is taking all the actions that he must take. This is his decision. He acts through his functionaries, but all such acts are carried out in the name of the President and in accordance with the law.

[30] On the reference to s 110(5) of the Constitution, and that there was no communication from the President that he acted, he queried how there could be any communication from the President that he acted if he had not been joined to the proceedings. It was contended that if the applicant wants the President to show what he did or did not do, it must cite the President, so it can then say you did not do what you were required by law to do. Section 305(1) is a substantive legal power that provides that the President can cancel a Grant. What this provision does not say, and which the applicant misses with respect to, is that the President is the one who must communicate the cancellation. This is the very provision that requires the joinder of the President to determine whether or not he exercised the substantive power.

[31] Counsel also submitted that it was argued that what is at p 217 is the purported signature of the President. He argued that the applicant does not know the President's signature. Counsels and the court also do not know it. But there is a signature that purports to be that of the president. The fifth respondent believes that to be the signature of the President, but that is not the point at this stage. Given this kind of signature and the official communication, the President must be cited. It is not available to the applicant to say this signature purports to be that of the president. The President must be heard because nothing can stop his joinder. While the other respondents did not participate, there are official documents and objective evidence that the fifth respondent can rely on. It does not mean that the President must be joined in all litigation, but the President must

be joined in litigation where it is asserted that his acts are invalid. The joining of the president in these proceedings is justified on the issues raised by the applicant itself. The effect of this point is to defeat the application.

[32] It was further contended that counsel for the applicant said nothing about a cause not being set out in the absence of the joinder of the President, and that they bring proceedings against X where they want an order against Y. Under those circumstances, the cause is bad in law and ought to be dismissed. The party not joined is a party in respect of whom leave must first be sought before they are joined. When the court enquired, as argued by the applicant's counsel, that once the court upholds the point, whether it would be appropriate to dismiss the application, Mr *Mpofu* argued that the application was insufficient for its purpose. He further contended that it is an application in which a cause cannot be established at all, and for that reason, dismissal would be competent. He finally submitted that if the court is not with him on that point, the application may then be struck off the roll.

THE QUESTION FOR DETERMINATION

[33] The court must determine whether the non-joinder of the President of the Republic of Zimbabwe was material and fatal to this application.

THE APPLICABLE LAW

[34] It is trite that every person who has a direct and substantial interest in a matter ought to be cited in court proceedings as a party. The joinder of all interested parties is intended to ensure that the court hears them before it can make a determination on the matter that may prejudicially affect them. This is imperative because of the fundamental principle of our law: the *audi alteram partem* rule. The joinder would also be necessary for the effectual and complete determination and resolution of all issues arising in the dispute before the court. The law was succinctly set out in *Tour Operators Business Association of Zimbabwe* v *Motor Insurance Pool & Ors* CCZ 05/15 at p 5, where PATEL JA said:

> "As a matter of procedure, it is trite that a party instituting any legal proceedings must cite every person who has a direct and substantial interest in the matter or who is likely to be prejudicially affected by the relief sought therein. The failure to do so is not necessarily fatal in every case inasmuch as the courts have an inherent discretion to cure

any material non-joinder by giving such directions as may be just and appropriate for that purpose. This is explicitly recognised in r 87 of the High Court Rules 1971."

ANALYSIS

[35] It was argued that the joinder of the President was necessary for the determination of this matter. In other words, the fifth respondent argued that the non-joinder of the President was material and fatal to this application. It is common cause that the applicant is challenging the cancellation of its Special Grant in respect of the Sengwa Colliery and the subsequent issuance of a Special Grant to the fifth respondent. The applicant pleaded the cause of action firstly, in respect of the cancellation of the Special Grant, that the first respondent lacked the statutory authority to issue a notice of cancellation of a Special Grant under s 305 of the Mines and Minerals Act. It argued that this should be the act of the President. It further argued that the first respondent and second respondent, acting as the Chairperson of the Mining Affairs Board and Secretary in the Ministry, have no statutory authority to cancel the Special Grant issued under Part XX of the Act. It was, therefore, argued that the decisions and proceedings by the said respondents were a nullity, hence the declaratory order sought.

[36] There is no doubt that the notice of cancellation at p 173 of the record was communicated by the Minister. The letter dated 15 August 2024 was signed by the Minister, giving the applicant 12 months' statutory notice of intention to cancel the said Special Grant. The cancellation, also at p 176, dated 15 August 2025, was issued by the second respondent, as the chairperson of the fourth respondent and the Secretary of the Ministry of Mines and Mining Development. It was contended for the fifth respondent that the cancellation of the Special Grant was the decision and act of the President, executed through his functionaries. It was thus argued that s 305(1) of the Act permits this, as the substantive decision is required to be that of the President. The document from p 216 shows an alleged communication between the Minister and the President. At p 217, the letter is signed by the Minister, and there is a portion with the words "Approved/ Not Approved," where a handwritten cancellation appears on the word "Not". After that, a signature appears, and below it is the President's name and office title. Mr *Sithole* argued that there is a purported signature of the President and that, in any event, by virtue of the provision

of s 110(5) of the Constitution, there ought to be written communication by the President of his decision. This, he argued, cannot be a proper act of the President. But once there are allegations related to the involvement of the President and an alleged signature said to be his, which is then disputed, in my view, it would become necessary that he be heard or at least be given the chance to clarify for the court to effectually and completely determine all the issues arising.

[37] The determination of the issue whether or not the cancellation was an act of the President or that of the first and second respondents, as argued by the applicant, would necessitate that the President be cited as a party. After all, the decision to cancel a Special Grant for coal mining under Part XX, in particular s 305(1), is made by the President. The issue whether the President exercised the executive function in question looms large. It was put in contention whether the law would require that the President communicate the decision himself, or whether the Minister or the Secretary, who is also the chairperson of the Mining Affairs Board, could competently do so, purportedly on the President's authority or with his approval. Thus, it would be critical to determine whether it can be said that the President acted with respect to both the cancellation and the granting of the Special Grant. Thus, the President's involvement is brought to the fore.

[38] The fifth respondent’s position is that the first and second respondents are mere functionaries of the President and that it was the President who had acted. Accordingly, whether indeed the respondents usurped the President’s statutory authority or whether they had abused their power can safely be answered with the participation of the President. The relief sought also includes declaring the cancellation of the applicant’s Special Grant a nullity. It is intricately tied to the question of whether the cancellation was a valid process sanctioned by law. Given the cause of action and the relief sought and the evidence bringing in what is alleged to be the President’s acts it would be proper for the court to consider the alleged role of the President as shown at p 217 and hear him before it determine whether he acted or not or it was the first and second respondents who acted on a frolic of their own and if they acted with his authority whether what was done complied with the requirements of the law. If it is to be said that the President acted but

acted wrongly, it follows naturally that he must be heard before his alleged conduct could be judged incorrect. The joinder of the President would surely be necessary or material.

[39] When one further considers the challenge to the issuance of the Special Grant to the fifth respondent, the applicant's case is that it was predicated on a nullity and accordingly void *ab initio*. It was thus argued that the cancellation of the applicant's Special Grant was a nullity. It is trite that a nullity does not beget a valid process. The pleaded cause and the relief sought seek to have the cancellation and the award of the Special Grant over the Segwa mining location to the fifth respondent declared void. The applicant accordingly wants a revival of its Special Grant, which it argues remains valid and extant as it was not lawfully cancelled in the first place. The fifth respondent, on the other hand, argued that it acquired title after the applicant's Special Grant was cancelled and that it derived its rights from the valid acts of the President. What is impugned is alleged to be the act of the President. Whether the President indeed granted the Special Grant in question, which is sought to be nullified, has to be resolved with the President as a party. The fact that the applicant characterises the conduct solely as that of the first and second respondents does not matter at this stage.

[40] There are evidentiary documents relating to material issues that point to the President's involvement in the cause in question. At p 178 of the record is an alleged Cabinet minute said to have been approved by the President, stating that the Cabinet had recommended to him the authorisation of the issue of the Special Grant No. 10417 to the fifth respondent. Further, at p 220 is the certificate for the Special Grant issued to the fifth respondent. It records the following:

> "SPECIAL GRANT NO. 10417 (PART XX)
>
> In terms of section 301 of the Mines and Minerals Act [*Chapter 21:05*] (hereinafter referred to as "the Act"), the President of Zimbabwe hereby authorise the Minister of Mines and Mining Development to issue a Special Grant (Hereinafter referred to as 'the Grant') to:
>
> GEORGE MINING (PVT) LTD". (*my emphasis*)

The said certificate is signed by the first and second respondents. Attached to it are the conditions of the Grant, which also relate to the President, particularly in clauses 11 and 12. The document brings the President's involvement into the picture, as it is alleged that

he authorised the issuance of the Special Grant in question, which the applicant seeks to be declared a nullity. Whether he was involved and, if so, properly, can be safely resolved subject to his participation as a party.

[41] The issuance of the Special Grant to the fifth respondent was also published in the Government Gazette of 17 October 2025. It states as follows:

> "It is hereby notified that the Minister of Mining Development, with the authorisation of the President, has, in terms of section 301 of the Mines and Minerals Act [Chapter 21:05], issued Mining Special Grant No. 10417 to George Mining (Private) Limited for a period of twenty-five years with effect from the date of publication of this notice." (*my emphasis*)

What is apparent from the above is that the fifth respondent takes the position that it acquired the Special Grant by the executive decision of the President executed through his functionaries, the first and second respondents. The Special Grant, the Gazette, and the Cabinet minute relate to the alleged involvement of the President in the decision to grant the application for a Special Grant that the applicant impugns. I must admit that the parties went on to argue extensively on the merits of the application before me. I, however, reject the invitation to consider the merits of the application or make pronouncements on the validity of the arguments made or the issues thereof.

[42] Given such documents as the certificate of the Special Grant and the Gazette, which are public documents, I must say that the question of whether the issuance of the Special Grant was simply an unlawful act of the first and second respondents or proper acts of the President ought to be considered, with the President being a party to this suit. This would enable the court to determine whether the said cancellation and the issuance of the Special Grant were unlawful acts of the first and second respondents, as argued by the applicant, or those of the President and lawful, as argued by the fifth respondent.

[43] With the alleged signature of the President on one of the documents before the court (particularly at p 217), purporting to approve the cancellation process, and the other public documents alleging the President's involvement in this matter, it was necessary to cite the President as a party. Whether it was his signature in question or not had to be answered with him being given the opportunity to be heard. The nature of the relief sought, which also challenges the issuance of the Special Grant, calls into question the

alleged role of the President, the authority empowered to decide whether to grant the application for a Special Grant and to cancel the same under Part XX of the Act.

[44] I do not agree with Mr *Sithole* that, because the other respondents have not challenged the application, the citation of the President is unnecessary. There is no doubt that at p 220 of the record, being the certificate of the Special Grant, there was a reference to the President's authority being given for the issuance of the Special Grant. His argument that there had to be written communication from the President in terms of 110(5) of the Constitution for any act of the President himself would be one on the merits. The same goes to the application of subsection (6) thereof, argued by Mr *Mpofu*. As I have already alluded to above, the parties strayed into the merits in their arguments on the point *in limine*.

[45] Further, I also noted what Mr *Sithole* argued was the President's purported signature at p 217. With the President's name and involvement being thrown into the picture and where the cause of action calls into question the purported acts of the first and second respondents, which the fifth respondent on the other hand, argued are the acts of the President through his duly authorised functionaries, it would not only have been convenient but necessary for the President to have been joined to these proceedings. Accordingly, whether it was the first and second respondents who acted unlawfully or the President himself ever acted at all, or if he did, whether he acted properly, would necessarily have to be resolved. Those matters that put the President's involvement in issue can only be properly resolved with the President cited as a party. To that extent, I agree with Mr *Mpofu* that there was material non-joinder of the President in the circumstances. I, therefore, uphold the preliminary point for the non-joinder of the President.

[46] This brings me to the second part of the question for determination: whether the non-joinder is fatal to the application. The law is well-established on the effect of non-joinder. As alluded to earlier in the *Tour Operators Business Association of Zimbabwe* case (*supra*), non-joinder is not necessarily fatal in every case, as the courts have inherent discretion to cure a material non-joinder by giving such directions as may be appropriate

and just for that purpose. Rule 32(11) is also very clear on this position. It states clearly as follows:

> "(11) No cause or matter shall be defeated by reason of the misjoinder or non-joinder of any party and the court may in any cause or matter determine the issues or questions in dispute so far as they affect the rights and interests of the persons who are parties to the cause or matter." (*my emphasis*)

[47] By the use of the word "shall", the provisions of rule 32(11) are peremptory. It is a well-established principle that the use of the word "shall" in a statutory provision denotes the legislature's intention, in this case of the drafters of the rules, of imposing a peremptory or mandatory obligation. See *Mukwaira* v *Minister of Lands, Agriculture, Fisheries, Water & Rural Resettlement* SC 15/24, at p 15, where it was stated that;

> "It is trite that where the word 'shall' is used it denotes a mandatory requirement. Thus, the use of the word "shall" in s 3 (1) (c) is imperative – it denotes that the section is peremptory, and thus compliance with its provisions is mandatory."

Again, in *Shumba & Anor* v *ZEC & Anor* 2008 (2) ZLR 65 (S) at 80D-G, similar sentiments were made when the court said:

> "It is the generally accepted rule of interpretation that the use of peremptory words such as "shall" as opposed to "may" is indicative of the legislature's intention to make the provision peremptory. The use of the word "may" as opposed to "shall" is construed as indicative of the legislature's intention to make a provision directory. In some instances, the legislature explicitly provides that failure to comply with a statutory provision is fatal. In other instances, the legislature specifically provides that failure to comply is not fatal. In both of the above instances no difficulty arises. The difficulty usually arises where the legislature has made no specific indication as to whether failure to comply is fatal or not."

[48] The non-joinder of a party, accordingly, cannot be fatal given the mandatory provisions of the said rule 32(11). The court is also empowered, either *mero motu* or upon an application, to join a party necessary for the determination of the matter before it who was improperly not joined in the proceedings at any stage. Thus rule 32(12) further provides:

> (12) At any stage of the proceedings in any cause or matter the court may on such terms as it thinks just and either on its own initiative or on application—
> (a) order any person who has been improperly or unnecessarily made a party or who has for any reason ceased to be a proper or necessary party, to cease to be a party;
> (b) order any person who ought to have been joined as a party or whose presence before the court is necessary to ensure that all matters in dispute in the cause or matter may be effectually and completely determined and adjudicated upon, to be added as a party:

> Provided that no person shall be added as a plaintiff without his or her signed written consent or in such other manner as may be authorised." (*my emphasis*)

[49] The law on the effect of non-joinder was further clarified in *Mwazha & Ors* v *Mhambare* SC 116/21 at pp 6-7, where CHIWESHE JA had this to say:

> "The first and second grounds of appeal have no merit. Firstly, the appellants have argued that the non-joinder of the Archbishop was fatal to the proceedings. The effect of non-joinder is a well traversed subject in this jurisdiction. The law in this regard was succinctly spelt out by GARWE JA (as he then was) in the case of *Wakatama and Others vs Madamombe* 2011 (1) ZLR at p 18 A-D when he stated thus:
>
> "Whether the non-joinder of the Minister is fatal need not detain the court and can easily be disposed of by reference to r 87 of the High Court Rules which provides:
>
> '1. No cause or matter shall be defeated by reason of the misjoinder or non-joinder of any party, and the court may in any cause or matter determine the issues or question in dispute so far as they affect the rights and interests of the persons who are parties to the cause or matter.
>
> 2. At any stage of the proceedings in any cause or matter the court may on such terms as it thinks just and either of its own motion or on application-
>
> (a) …
>
> (b) Order any person who ought to have been joined as a party or whose presence before the court is necessary to ensure that all matters in dispute in the cause or matter may be effectually and completely determined and adjudicated upon, to be added as a party.'
>
> The above provision is clear and allows of no ambiguity. The non-citation of the Minister is not in the circumstances fatal. Indeed the court restated this position in the recent decision in *Gula Ndebele* v *Bhunu NO* SC 29/11.
>
> Similarly, *in casu* the non-joinder of the Archbishop was not fatal to the application before the court *a quo*.
>
> The remedy for non-joinder is provided for in r 87 itself. A party who is aggrieved by the non-joinder of another party must proceed in terms of r 87(2) and make the necessary application for the joinder of that other party. It is thus permissible for a court to order the joinder of any party either on its own motion or on the application of any of the parties before it, or, for that matter, any other party who may have an interest in the outcome of the matter. The appellants, being of the view that the Archbishop ought to have been joined in the proceedings before the court *a quo* chose not to apply for the Archbishop's joinder. They cannot now be heard to cry foul and seek to rely on their own inadvertence as a ground of appeal to this Court…" (*my emphasis*)

[50] Given the now-settled legal position outlined in the authorities above, the cases cited by Mr *Mpofu* in his submissions cannot assist him. Our current law is clear that the non-joinder of a party, given the provisions of rule 32(11), is not fatal to the application. It would be inappropriate for me, in the circumstances, to dismiss the application on the

ground of a material non-joinder. While the applicant argued that it only sought to impugn the unlawful acts of the first and second respondents, I have found that the involvement of the President is put in issue, as it was also alleged that the first and second respondents were merely his functionaries. The documents I have alluded to above, including the letter at p 216, the Special Grant at p 220, the document at p 178, and the Gazette at p 177, are further necessary in the examination of the dispute. To that end, the matter calls for the citation of the President. It is trite that once the court finds a party necessary, it cannot proceed with that matter without the joinder of such party. Thus, Herbstein & Van Winsen, *Civil Practice of the High Courts of South Africa*, 5th ed, at p 217 state as follows:

> "… In fact, when such person is a necessary party in this sense, the court will not deal with the issues without a joinder being effected, and no question of discretion or convenience arises." (*my emphasis*)

[51] The court has inherent power to order the joinder of a party to cure any material non-joinder so that it can properly determine the dispute before it. Given my findings above on the necessity of the joinder of the President, it would be in the interests of justice that he be joined to these proceedings. I am alive to the provisions of rule 12(21), which states as follows:

> "No summons or other civil process of the court may be sued out against the President or any of the judges of the High Court without the leave of the court granted on court application being made for that purpose."

However, given my findings on the necessity for the joinder of the President, I invoke my powers in terms of the provisions of rule 32(12)(b) to order the joinder of the President, as his presence is necessary for the court to ensure that all matters in dispute in this matter may be effectually and completely determined and resolved. The said provisions allow the court to join any person who is necessary for the resolution of the issues. By the use of the words "any person", the provisions are very broad, and that is also consonant with the inherent power of this court to order the joinder of a necessary party. In my view, this power cannot be restricted by rule 12(21) since, in any case, it is the same court that sanctions the suit against the President when such an application is made. The

finding that the non-joinder of the President was material would also mean that the issue of a frivolous or vexatious suit does not arise.

[52] In my view, rule 12(21) relates to a party suing out any summons or civil process without first obtaining leave. This provision does not relate to where the court, given the circumstances, finds the other party necessary for the determination of a matter already before it and believes the joinder of the President is necessary. In that instance, the court can, if it is just to do so, order such joinder even *mero motu*. Mr *Mpofu* cited the case of *The President of the Republic of Zimbabwe, Mugabe & Ors* v *Tsvangirai N.O.* SC 21/17 at p 7, where CHIDYAUSIKU CJ (as he then was) held that:

> "Whenever a litigant wishes to sue the President, he has to comply not only with section 4 of the State Liabilities Act but also with Rule 18 of the High Court rules. Section 4 of the State Liabilities Act and Rule 18 of the High Court rules provide that for the President to be sued, two requirements are necessary- (1) he has to be sued in his official capacity; and (2) if the suit is in the High Court, leave of the court has to be obtained first." (*my emphasis*)

The above case is completely different from the case before me. In *casu*, the applicant did not sue out a notice of motion against the President without the leave of the court to render the proceedings a nullity. Instead, it is the court's finding that his citation and participation in these proceedings is necessary. It is, therefore, the court itself which would have joined the President to the proceedings. The suit against him is accordingly sanctioned by the court itself.

[53] In any event, the court is empowered to direct any departure from the rules in the interests of justice in terms of rule 7(a) where it is expedient to do so. This would be one such case where a departure would be appropriate since, in my view, if such leave had been sought, no reasonable court could have declined to grant it. This is particularly so where the court is permitted, in the exercise of its inherent discretion to control its own process and procedures, to order the joinder of any party, on its own motion, who may have an interest in the outcome of the matter. See rule 32(12)(b). The joinder of the President cannot be dispensed with in resolving the issues, as already noted above.

DISPOSITION

[54] I am satisfied that the non-joinder of the President is material. The point *in limine* of non-joinder ought to succeed. However, the non-joinder is not fatal to the application. The court may properly exercise its inherent power, as further set out in rule 32(12)(b), to join the President to these proceedings. I invoke that power to have him as a party to these proceedings, as that would be essential for a complete and effectual resolution of all the matters arising in this case. Mr *Mpofu* agreed with me that the matter cannot proceed without affording the President the right to be heard in terms of the *audi alteram partem* principle. He, however, had argued that the application must be dismissed for the non-joinder. On that, I could not agree.

[55] This court has inherent authority to order the joinder of any person necessary for the determination of all issues before it in terms of rule 32(12(b). The words "any person" in the said rule are very wide and may include even the President. In any case, it cannot be argued that the applicant instituted a suit against the President without the leave of the court contrary to rule 12(21); rather, it is a suit that the court itself has sanctioned. The application cannot, therefore, fail for the non-joinder. It would be in the interests of justice, as the case calls for the proper determination of all issues arising in this case, that the participation of the President be ordered. In any case, Part XX of the Act has, by statutory authority, brought the President directly into the arena as the authority that makes the decision to grant the application for a Special Grant or cancel it. Whether the acts in question were the unlawful acts of the first and second respondents or proper and valid acts of the President as envisaged by the law can be fully be ventilated and resolved with the participation of the President. This is not any other case where it may not be necessary to cite the President.

[56] It would follow that the joinder of the President would necessitate that he be served and given the ordinary *dies induciae* to file any opposing papers, if he so wishes. In that context, the matter would have to be removed from the roll. As regards costs, the appropriate order should be that they be in the cause.

[57] In the result, it is hereby ordered as follows:

1. The point *in limine* for non-joinder be and is hereby upheld.

2. The President of the Republic of Zimbabwe be and is hereby joined to the present proceedings as the seventh respondent.

3. The matter be and is removed from the roll.

4. The applicant be and is hereby directed to serve the seventh Respondent with a copy of this application within ten (10) days of this order, and thereafter the matter shall proceed in accordance with the rules of court.

5. Costs shall be in the cause.

DEMBURE J: ……

Rubaya & Chatambudza, applicant's legal practitioners
Mhishi Nkomo Legal Practice, 5th respondent's legal practitioners